

Tathya Patel wants culpable homicide charge dropped

TNN / Oct 5, 2023, 08:36 IST

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Ahmedabad: As the criminal trial began in the Iskcon flyover accident case, where nine persons were killed, the public prosecutor made an opening statement before the principal district judge on Wednesday and the accused persons, Tathya Patel and his father Pragnesh Patel, filed discharge applications.

Tathya has not sought discharge from all the offences he has been charged with.

He sought discharge from Sections 304 and 308 of IPC — culpable homicide not amounting to murder and its attempt — entailing imprisonment for up to 10 years and

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three years, respectively, citing lack of material to substantiate the prosecution's case. His lawyer submitted that his alleged act did not fall in the category of rash, reckless and negligent driving and therefore provisions of Sections 304 and 308 will not apply.

In his application filed through advocate Rohit Verma, Tathya stated, "Even if the entire case put up by the prosecution is believed or accepted to be true, the case is not one of culpable homicide, but at best it could be said to be one of rash and negligent driving punishable under Section 304-A of IPC." The punishment prescribed for this offence is up to two years in jail.

To buttress his argument that Section 304A of IPC could be invoked in the case, Tathya stated that if it is alleged that the act of the accused concerned is done with the knowledge that it is likely to cause death but without any intention to cause death or to cause such bodily injury as likely to cause death the charged offences would fall under Section 304 Part II.

However, there has to be evidence to substantiate this and the court must sift through the material before framing charges. There is no material nailing him for culpable homicide and the court must discharge him from Section 304 of the IPC.

In the chargesheet, police have invoked Sections 279, 337, 338, 304, 308, 504, 506 (2) and 114 of the IPC and Sections 177, 184 and 134 (b) of the Motor Vehicles Act against Tathya, who has not sought discharge from the other sections at present.

Tathya's father, who is charged with criminal intimidation and abetment, also filed a discharge application, through advocate Somnath Vatsa. The court posted a hearing on both discharge pleas for Thursday, when the court had decided to frame charges in this case.

The discharge pleas were filed after the district government pleader opened the case by describing the incident to the court, listing the number of witnesses and the evidence placed before the court.

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